



# GOVERNMENT GAZETTE

## OF THE

# REPUBLIC OF NAMIBIA

N\$9.60

WINDHOEK - 3 June 2026

No. 8935

### CONTENTS

*Page*

#### GOVERNMENT NOTICES

|         |                                                                         |   |
|---------|-------------------------------------------------------------------------|---|
| No. 172 | Commencement of Dissolution of Marriages Act, 2024 .....                | 1 |
| No. 173 | Amendment of Rules of High Court of Namibia: High Court Act, 1990 ..... | 2 |

### Government Notices

#### MINISTRY OF JUSTICE AND LABOUR RELATIONS

No. 172

2026

#### COMMENCEMENT OF DISSOLUTION OF MARRIAGES ACT, 2024

Under section 24(1) of the Dissolution of Marriages Act, 2024 (Act No. 10 of 2024), I determine that the Act comes into operation on the date of publication of this notice in the *Gazette*.

**FILLEMONT W. IMMANUEL**  
**MINISTER OF JUSTICE AND LABOUR RELATIONS**

Windhoek, 14 April 2026

**OFFICE OF THE JUDICIARY**

No. 173

2026

**AMENDMENT OF RULES OF HIGH COURT OF NAMIBIA:  
HIGH COURT ACT, 1990**

Under section 39 of the High Court Act, 1990 (Act No. 16 of 1990), I have –

- (a) amended the High Court Rules of the High Court of Namibia published under Government Notice No. 4 of 17 January 2014 as set out in the Schedule; and
- (b) determined that the said Rules come into operation on the date of publication of this notice in the *Gazette*.

**PETRUS T. DAMASEB**  
**JUDGE PRESIDENT**  
**HIGH COURT OF NAMIBIA**

Windhoek, 13 April 2026

**SCHEDULE****Definitions**

1. In these rules unless the context indicates otherwise “the Rules” means the Rules of the High Court of Namibia published under Government Notice No. 4 of 17 January 2014 as amended by Government Notice No. 227 of 7 November 2014, Government Notice No. 208 of 22 August 2025 and Government Notice No. 114 of 31 March 2026.

**Amendment of rule 1 of Rules**

2. Rule 1 of the Rules is amended in subrule (1) by the insertion after the definition of “court” of the following definitions:

““court-accredited private mediation” means mediation conducted in terms of Rule 38 by a court-accredited mediator at any venue determined by the mediator after consultation with the parties;

“court-connected mediation” means mediation conducted in terms of Rule 38 by a court-accredited mediator at a court facility;”.

**Substitution of heading of Part 9 of Rules**

3. The Rules are amended by the substitution of the heading to Part 9 for the following heading:

“ADJUDICATION OF DISPUTES RELATING TO DIVORCE OR ANNULMENT OF MARRIAGES UNDER DISSOLUTION OF MARRIAGES ACT”.

**Substitution of rule 87 of Rules**

4. The Rules are amended by the substitution for rule 87 of the following rule –

**“Divorce proceedings: general**

**87.** (1) In any process instituting divorce proceedings –

- (a) a copy of the marriage certificate of the parties must be attached to the particulars of claim or founding affidavit; and
  - (b) the original marriage certificate or an original duplicate copy of the marriage certificate must be presented through evidence in court at the hearing of the matter, and in motion proceedings the original marriage certificate or an original duplicate copy of the marriage certificate must be presented at the hearing of the application.
- (2) Service of all process and documents instituting divorce proceedings must be served on a party personally.
- (3) Where personal service of combined summons or an application has been effected more than six months before the matter is set down for trial on an unopposed basis, the combined summons or the application must be re-served, otherwise the trial may not take place.
- (4) If no appearance to defend or notice to oppose has been entered within the prescribed time the matter may be set down on the residual court roll in accordance with the practice directions.”.

#### **Repeal of rule 88 of Rules**

5. The Rules are amended by the repeal of rule 88.

#### **Insertion of rules 88A, 88B, 88C, 88D, 88E and 88F in Rules**

6. The Rules are amended by the insertion before rule 89 of the following rules –

##### **“Commencement of proceedings, particulars and opposition**

**88A.** (1) Unless otherwise stated to the contrary in this Part, any divorce proceedings instituted either by way of action or application as contemplated in the Dissolution of Marriages Act must, in addition to other rules applicable to action proceedings or application proceedings, be brought in terms of Part 5 or Part 8 of the Rules, as the case may be.

(2) Where divorce proceedings are instituted jointly by the parties to the marriage, such proceedings must, subject to such necessary modifications as may be required by the context, be made on application as contemplated in rule 72.

(3) Where one party to the marriage wishes to institute divorce proceedings and the other party to the marriage is likely to deny that the marriage has irretrievably broken down, such proceedings may only be instituted by way of application if –

- (a) possible disputes concerning irretrievable breakdown of marriage can be resolved on the papers without the need for oral evidence; and
  - (b) there is no minor child of the marriage as defined in the Dissolution of Marriages Act.
- (4) Subject to subrules (2) and (3), where disputes of fact are anticipated in divorce proceedings, such proceedings must be instituted by way of action.

(5) Where a party to the marriage has instituted divorce proceedings, the defendant or respondent, as the case may be, who denies that the marriage has irretrievably broken down must, in his or her plea or answering affidavit –

- (a) state that there are reasonable prospects of reconciliation between the parties to the marriage and furnish particulars of such reasonable prospects;
- (b) seek an order for the postponement of divorce proceedings for a period not exceeding three months; and
- (c) specifically allege and provide particulars that the postponement sought will not result in physical harm to the other party to the marriage or be to the detriment of the welfare of any child of the marriage.

(6) If on the return date of the order of postponement of divorce proceedings referred to in subparagraph (5)(b) the plaintiff or the applicant, as the case may be, wishes to continue with the divorce proceedings, the court must grant an order of divorce.

(7) In an action or an application for a divorce, the plaintiff or applicant, as the case may be, must, in his or her particulars of claim or founding affidavit, specify the marital regime and state clearly which of the following orders he or she seeks –

- (a) an order for the sale of assets;
- (b) an order for the transfer of assets to either of the parties;
- (c) an order for the payment of a capital sum of money;
- (d) an order concerning the occupation of the marital home;
- (e) an order that any necessary instrument be executed, and that such documents of title be produced and such other things be done, as are necessary to enable an order to be carried out effectively or to provide security for the due performance of an order;
- (f) an order for spousal maintenance;
- (g) an order for access to a child of the marriage or for the maintenance, custody or guardianship of a child of the marriage; or
- (h) an order for the forfeiture of benefits arising as a result of the marriage in community of property.

(8) The defendant or respondent, as the case may be, may, in like manner, plead or answer to the allegations referred to in subrule (7), or by way of claim in reconvention seek specific orders referred to in that subrule against the plaintiff or applicant.

(9) The –

- (a) party instituting divorce proceedings, in his or her particulars of claim or founding affidavit; and
- (b) defendant or respondent, in his or her plea or answering affidavit,

must set out fully all his or her assets and liabilities, including any order made in respect of an asset in terms of the Prevention of Organised Crime Act, 2004 (Act No. 29 of 2004) or any other law.

(10) Proceedings for the annulment of a marriage must be brought by way of action and Part 5 of the rules applies.

### **Compulsory mediation in divorce proceedings**

**88B.** (1) Where either of the parties in defended or opposed divorce proceedings seeks an order for –

- (a) the division of assets;
- (b) access to a child of the marriage or for the maintenance, custody or guardianship of a child of the marriage, other than interim child maintenance; or
- (c) spousal maintenance, other than interim spousal maintenance,

the managing judge must, in the case plan order or at the close of pleadings, direct that the matter be referred for court-connected mediation or court-accredited private mediation in terms of Rule 38.

(2) The mediator's report to the court must be accompanied by a report by the legal practitioner of each party making a declaration on Form 32 that the legal practitioner has complied with section 5(2) of the Dissolution of Marriages Act.

- (3) Any fees payable to a mediator in –
  - (a) a court-connected mediation is payable from the funds of the Office of the Judiciary; and
  - (b) a court-accredited private mediation is payable by the parties and determined by the mediator in consultation with the parties.

### **Report by social worker**

**88C.** Where the Court has requested for a report from a social worker or has directed a party or the parties to divorce proceedings to obtain a report from a social worker as contemplated in section 17(1) of the Dissolution of Marriages Act, the following procedure must apply –

- (a) the court must give directions as to when the report must be submitted;
- (b) the registrar or the parties must cause a copy of the report to be filed on e-justice;
- (c) the court must determine the date and time when the report is to be considered and may direct that the social worker be present on such date for the consideration of the report; and
- (d) on the date for the consideration of the report, a party or the social worker may give evidence on any matter contained in the report and may be cross-examined in such sequence or manner as may be directed by the court.

**Party with diminished mental capacity or continuous unconsciousness**

**88D.** (1) The *curator ad litem* referred to in section 6(1) or (2) of the Dissolution of Marriages Act that must be appointed in divorce proceedings or annulment of marriage proceedings for a party to the marriage with a diminished mental capacity or continuous unconsciousness as contemplated in that section may be appointed by the court on application made by an interested party.

(2) An application referred to in subrule (1) to appoint the *curator ad litem* must be made in terms of rule 81.

**Privacy of certain divorce and annulment of marriage proceedings**

**88E.** (1) Where a party or both parties in divorce proceedings or annulment of marriage proceedings or any other person who can show legitimate interest in the proceedings desires the proceedings to be held behind closed doors and that no person other than –

- (a) the party or parties to the marriage;
- (b) the legal practitioner acting on behalf of a party to the marriage;
- (c) the required court officials; and
- (d) persons whose presence is necessary,

may be present at the proceedings as contemplated in section 19 of the Dissolution of Marriages Act, he or she must apply to the court on notice of motion supported by affidavit, before or upon commencement of the proceedings or at any stage during the proceedings.

(2) The application referred to in subrule (1) must be served on all interested parties to the proceedings.

(3) Where the application referred to in subrule (1) is –

- (a) instituted before the commencement of the proceedings, the application must be instituted in terms of rule 65; or
- (b) brought at any stage during the proceedings, the applicant must bring the application on e-justice as an ancillary application to the main action or application.

**Order of divorce in absence of parties**

**88F.** A court may grant an order of divorce in the absence of the parties to the marriage if –

- (a) the parties have concluded and signed a settlement agreement from which it is apparent that –
  - (i) the parties no longer wish to be married and that the marriage must be dissolved;
  - (ii) all property claims against each other have been resolved by the parties;

- (iii) all issues relating to access to a child of the marriage or maintenance, custody or guardianship of a child of the marriage have been resolved;
- (b) the settlement agreement has been filed on the e-justice as outlined in the practice directions;
- (c) the parties complied with the Stamp Duties Act, 1993 (Act No. 15 of 1993); and
- (d) the court is satisfied that it is a proper case for an order of divorce to be granted in the absence of the parties.”.

#### **Substitution of rule 89 of Rules**

7. The Rules are amended by the substitution for rule 89 for the following rule:

#### **“Application of Judicial Case Management to divorce and annulment of marriage proceedings**

**89.** (1) Part 3 and Part 6 of the Rules apply to defended divorce proceedings and annulment of marriage proceedings instituted by way of action, and Part 6 and rule 70 and rule 71 apply to opposed divorce proceedings instituted by way of application, except that parties must also address the issues referred to in subrule (2) in addition to the requirements of –

- (a) rule 25(2), in case of proceedings instituted by way of action; or
  - (b) rule 71(2) read with rule 71(4), in case of proceedings instituted by way of application.
- (2) The additional requirements to be addressed at the case management conference are –
- (a) where applicable, proposals must be made in a report for the –
    - (i) custody, guardianship of, or access to, a child of the marriage;
    - (ii) maintenance of a child of the marriage;
    - (iii) spousal maintenance;
    - (iv) periodical allowance;
    - (v) division of assets;
    - (vi) forfeiture of patrimonial benefits; and
    - (vii) where necessary, the commissioning of a social welfare report; and
  - (b) in case of a dispute, each party must file together with the report an affidavit with documentary annexures, setting out his or her proposals on any of the issues referred to in subrule (2)(a) which are in dispute, including full disclosure of –
    - (i) his or her income from every source, whether in Namibia or elsewhere, together with documentary proof where available;

- (ii) a full list of the parties' respective assets and liabilities with formal valuations or if that is not reasonably practicable, estimated valuations of such assets and liability; and
- (iii) a list of the financial needs of any minor child with supporting documents, where available, for the education and welfare of the minor child.

(3) Despite subrule (1), the managing judge may at any time dispense with any proceeding if he or she considers it reasonable so to do in order to curtail the proceedings to save costs or to promote the overriding objective.”.

#### **Substitution of rule 90 of Rules**

8. The Rules are amended by the substitution of rule 90 for the following rule:

#### **“Interim relief in pending divorce proceedings and annulment of marriage proceedings**

“90. (1) This rule applies whenever a party in divorce proceedings seeks relief from the court in respect of –

- (a) spousal maintenance or maintenance of a child of the marriage pending suit;
- (b) a contribution towards the costs of a pending divorce action or application;
- (c) interim custody or guardianship of a child of the marriage;
- (d) interim access to a child of the marriage;
- (e) occupation of marital home while the divorce proceeding is pending;
- (f) an order that none of the spouses may damage, transfer, encumber, conceal or otherwise dispose of any joint assets while the divorce proceeding is pending; or
- (g) an order that a spouse may not commit any act of domestic violence against the other, which may include an order requiring a spouse to stay away from a specified residence or workplace of the other spouse.

(2) This rule applies whenever a party to an annulment of marriage proceedings seeks relief from the court in respect of –

- (a) interim periodical allowance;
- (b) maintenance of a child of the marriage pending suit;
- (c) a contribution towards the costs of a pending annulment of marriage proceedings;
- (d) interim custody or guardianship of a child of the marriage;
- (e) interim access to a child of the marriage;
- (f) occupation of the marital home while annulment of marriage proceeding is pending;



- (g) an order that none of the spouses may damage, transfer, encumber, conceal or otherwise dispose of any joint assets while the annulment of the marriage proceeding is pending; or
  - (h) an order that a spouse may not commit any act of domestic violence against the other, which may include an order requiring a spouse to stay away from a specified residence or workplace of the other spouse.
- (3) An applicant must in respect of any application contemplated in subrule (1) or (2) bring the application on e-justice as an ancillary application to the main action or application, as the case may be, and it must be made on form 19.
- (4) The notice to the respondent and the founding affidavit must provide for an address for service and must be served on the respondent by the deputy-sheriff, but if the main action or application is already defended or opposed, service may be effected on the legal practitioner of the respondent, if the respondent is represented.
- (5) The respondent must within 10 days after service of the application referred to in subrule (1) or (2) deliver an answering affidavit, and if the respondent fails to do so he or she is by that very fact barred.
- (6) The managing judge in an application where the main case is defended or opposed, as the case may be, must as soon as possible after an application in terms of subrule (3) is filed, schedule a hearing for the application, which hearing must not be later than 5 days after the *dies* have lapsed for filing of an answering affidavit in terms of subrule (5).
- (7) If the main case is not defended or opposed, the applicant must as soon as possible after the *dies* have lapsed for filing of an answering affidavit in terms of subrule (5) set the application down for hearing on the residual court roll in accordance with the practice directions.
- (8) The managing judge or residual court judge, as the case may be, may hear such evidence as he or she considers necessary and may dismiss the application or make such order as he or she thinks fit to ensure a just and expeditious decision.
- (9) The managing judge or residual court judge, as the case may be, may, on application made to him or her, vary his or her decision in the event of a material change taking place in the circumstances of either party or a child or the contribution towards costs proving inadequate.
- (10) When an unopposed interim application in a pending divorce action or motion is postponed, the interim application may be continued before another court notwithstanding that evidence has been given.
- (11) Rule 32 applies to any application brought in terms of this rule, except that in the case of an unopposed application brought under this rule, a legal practitioner must not charge a fee exceeding N\$5 000.”.

#### **Amendment of Annexure A to Rules**

9. Annexure A is amended by the –
- (a) substitution of Form 19 of the following Form:

“FORM 19

Rule 90

**INTERIM RELIEF IN PENDING DIVORCE PROCEEDINGS AND ANNULMENT OF  
MARRIAGE PROCEEDINGS**

IN THE HIGH COURT OF NAMIBIA  
(Main/Northern Local Division)

Case Number:.....

In the matter between:

.....

Applicant

And

.....

Respondent

To the above-mentioned respondent:

TAKE NOTICE that ..... hereinafter called the applicant intends to apply to the court for an order:

- (a) .....
  - (b) .....
  - (c) .....
- (set out the form of order prayer)

And that the accompanying affidavit of ..... will be used in support of this application.

TAKE NOTICE FURTHER that the applicant has appointed .....  
(here set out an address referred to in rule 65(5)) at which he or she will accept notice and service of all process in these proceedings.

TAKE FURTHER NOTICE that if you intend to oppose this application you must, within 10 days, file an answering affidavit with the registrar of the court. If you fail to do that, you will be automatically barred from opposing the application and an order may be granted against you as claimed. Your answering affidavit must indicate what allegations in the applicant's founding affidavit you admit or deny and must concisely set out your defence.

DATED at ..... on this ..... day of ..... 20.....

.....  
Applicant / Legal Practitioner for the applicant  
Address for service:

.....

To: .....  
Respondent / Legal Practitioner for the respondent  
Address for service:

.....

To: Registrar of the High Court  
Main/Northern Local Division  
(Address)";

(b) addition after Form 31 of the following Form:

“FORM 32

Rule 88B(2)

**REPORT BY LEGAL PRACTITIONER**

**Compliance with Section 5(2)(a) and (b) of the Dissolution of Marriages Act 10 of 2024**

IN THE HIGH COURT OF NAMIBIA  
(Main/ Northern Local Division)

Case Number: ...../.....

ADR Number:.....

In the matter between:

.....

Applicant/Plaintiff

And

.....

Respondent/Defendant

**Date:** .....

**Legal Practitioner:** .....

**Law Firm:** .....

**Case Number:** .....

**ADR Number:** .....

**Name of Client:** .....

**Citation of Client:** Applicant / Respondent / Plaintiff / Defendant

**1. Purpose of the Report**

This report serves to confirm that I have complied with the requirements set out in section 5(2)(a) and (b) of the Dissolution of Marriages Act, 2024 (Act No. 10 of 2024) in representing my client(s) during divorce proceedings.

**2. Details of compliance**

**2.1 Informing client about mediation (section 5(2)(a))**

I have informed the client(s) of the availability of mediation as a means to resolve matters relating to, division of assets, custody, guardianship of, or access to, a child of the marriage, maintenance of a child of the marriage.

**2.2 Encouraging Resolution through Mediation (section 5(2)(b))**

(a) I have encouraged the client(s) to consider mediation for the resolution of the above matters.

(b) I discussed the potential benefits of mediation, including cost-effectiveness, greater control over the outcome, preservation of relationships, especially where children are involved.

### 3. Declaration

I hereby declare that I have complied with the obligations set out in section 5(2)(a) and (b) of the Dissolution of Marriages Act, 2024 (Act No. 10 of 2024). I remain committed to facilitating a resolution that serves the best interests of my client(s) and any children involved.

\_\_\_\_\_  
NAME OF DEPONENT: .....

I hereby certify that the Deponent:

- (a) acknowledged that he/she knows and understands the contents of this declaration;
- (b) that he/she does not have any objection to taking the prescribed oath, and that he/she considers it to be binding on his/her conscience
- (c) uttered the words ***"I swear that the contents of this declaration are true, so help me God / I truly affirm that the contents of this declaration are true"***; and
- (d) signed this declaration in my presence at ..... on this .... day of ..... 20.....

I further certify that I have signed this certificate at the same place and date in the Deponent's presence.

\_\_\_\_\_  
COMMISSIONER OF OATHS

FULL NAMES: .....

CAPACITY: .....

ADDRESS: .....

....."

\_\_\_\_\_